Franciscus Dylan Rosario,
7624 Melody
Rohnert Park, CA 94928
E: soltrinox@gmail.com
Plaintiff, In Pro Per

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF SAN FRANCISCO

Franciscus Dylan Rosario,

PLAINTIFF,

v.

CSAA Insurance Exchange;

and DOES 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631802

(Related to Case No.: CGC-21-594102)

PLAINTIFF'S DEMAND FOR JUDICIAL SUMMARY OF FACTS

RELIEF REQUESTED

Plaintiff respectfully demands that the Court, based on the records and documents already before this Court (or properly subject to judicial notice), enter a judicial summary establishing the following facts as having been established for all purposes in this proceeding. Each fact below is drawn from official records, court transcripts, or documents whose existence and authenticity are not reasonably subject to dispute. Plaintiff requests the Court to decide and declare that these facts are established.

FACTS DEMANDED FOR JUDICIAL SUMMARY

FACT 1: DATE OF COLLISION

The collision between Plaintiff Franciscus Dylan Rosario and Defendant Subhi Abdelhalim occurred on February 4, 2021.

Support: Complaint, CGC-21-594102; police incident report; CSAA denial letter dated February 25, 2021.

FACT 2: CSAA DENIAL LETTER

Defendant CSAA Insurance Exchange issued a denial letter dated February 25, 2021, twenty-one (21) days after the collision.

Support: CSAA denial letter dated February 25, 2021.

FACT 3: "CONCLUDED INVESTIGATION" REPRESENTATION

The denial letter stated, in substance, that CSAA had "concluded" its investigation and "concluded" that its insured was not liable.

Support: CSAA denial letter dated February 25, 2021.

FACT 4: OBTAINABILITY OF 911 RECORDING

Plaintiff's then-counsel, Dolan Law Firm, obtained the 911 audio recording on May 12, 2021, less than three months after the collision.

Support: Sworn testimony of J. Jessup, Esq., Reporter's Transcript, February 18, 2025, pretrial hearing, CGC-21-594102.

FACT 5: CONTENT OF THE 911 RECORDING

The 911 audio recording contains a statement by Defendant Subhi Abdelhalim regarding the collision. Abdelhalim authenticated the recording at trial on April 17, 2025, stating: "Yes. That is my voice."

Support: Reporter's Transcript, April 17, 2025, RT Day 8, Line 1979, CGC-21-594102.

FACT 6: CSAA FUNDED THE DEFENSE

CSAA Insurance Exchange funded the defense of *Rosario v. Abdelhalim*, CGC-21-594102, through retained defense counsel.

Support: CSAA's status as Abdelhalim's liability insurer; retention of Chambers, subsequently Carbone Smith & Koyama, and subsequently Phillips, Spallas & Angstadt LLP as defense counsel.

FACT 7: ABDELHALIM'S ADMISSION ON THE 911 RECORDING

The 911 audio recording contains a statement by Defendant Subhi Abdelhalim to the emergency operator, in substance: "I barely hit him with anything."

Support: Reporter's Transcript, April 17, 2025, RT Day 8, CGC-21-594102; 911 audio exhibit.

FACT 8: LAWSUIT FILED AFTER DENIAL LETTER

The underlying lawsuit, *Rosario v. Abdelhalim*, CGC-21-594102, was filed on July 27, 2021, approximately five months after the February 25, 2021 denial letter.

Support: Complaint filing date, CGC-21-594102; CSAA denial letter dated February 25, 2021.

FACT 9: PRODUCTION OF EVIDENCE TO DEFENSE IN DISCOVERY

The 911 audio, body-worn camera footage (approximately five videos), and CAD log were produced to defense counsel in discovery and used at Plaintiff's deposition on August 18, 2022, and at Defendant Abdelhalim's deposition on September 30, 2022.

Support: Sworn testimony of J. Jessup, Esq., Reporter's Transcript, February 18, 2025, pp. 139–141, CGC-21-594102.

FACT 10: COURT'S ON-RECORD STATEMENT OF MAY 12, 2021 DATE

The Court stated on the record that the 911 exhibit was turned over to the Dolan Law Firm on May 12, 2021.

Support: Reporter's Transcript, January 27, 2025, p. 31, ll. 22–24, CGC-21-594102 ("it appears that the date of the exhibit was turned over to the Dolan Law Firm was on May 12, 2021. So, it's

been in the possession of the Dolan Law Firm since May 12, 2021.”).

FACT 11: VERDICT MARGIN

The jury in *Rosario v. Abdelhalim*, CGC-21-594102, returned a 9–3 verdict for the defense, the minimum civil majority under California law.

Support: Special Verdict Form; Notice of Entry of Judgment, CGC-21-594102.

FACT 12: LAW ENFORCEMENT RESPONDED TO THE COLLISION

The San Francisco Police Department responded to the February 4, 2021 collision. Officers were dispatched, a 911 call was recorded, body-worn camera footage was generated, and computer-aided dispatch (CAD) logs were created in the ordinary course of the police response.

Support: Police incident report; 911 audio exhibit; CAD log; Complaint, CGC-21-594102.

FACT 13: DEFENSE COUNSEL SUBPOENAED SFPD FOR THE SAME RECORDS

Prior defense counsel issued a subpoena to the San Francisco Police Department requesting the same 911 audio, body-worn camera footage, and related data that CSAA had not obtained before issuing its denial letter. J. Jessup testified that he had a copy of this defense subpoena.

Support: Sworn testimony of J. Jessup, Esq., Reporter’s Transcript, February 18, 2025, p. 140, ll. 9–15, CGC-21-594102 (“I have a copy of the Compaq subpoena issued by defense to San Francisco Police Department requesting all of this data.”).

FACT 14: DENIAL LETTER WAS A PRE-LITIGATION BUSINESS COMMUNICATION

No lawsuit, demand, or formal claim proceeding existed at the time CSAA issued the February 25, 2021 denial letter. The letter was a pre-litigation business communication issued in the ordinary course of CSAA’s claims-handling operations.

Support: CSAA denial letter dated February 25, 2021; Complaint filing date July 27, 2021, CGC-21-594102.

FACT 15: FOUR YEARS OF LITIGATION

Plaintiff litigated *Rosario v. Abdelhalim*, CGC-21-594102, for approximately four years, from filing on July 27, 2021 through judgment on April 25, 2025.

Support: Complaint filing date; Notice of Entry of Judgment, CGC-21-594102.

FACT 16: JUDGMENT

Judgment was entered in favor of defendant on April 25, 2025.

Support: Notice of Entry of Judgment, CGC-21-594102.

FACT 17: MOTION IN LIMINE NO. 17 CLAIMS

Defense motion in limine No. 17, filed January 17, 2025, asserted that the 911 recording was "not produced during discovery," introduced at the "eleventh hour," and had "unknown provenance," despite the recording having been produced to defense in discovery and used at depositions in 2022.

Support: Motion in Limine No. 17, filed January 17, 2025, CGC-21-594102; Reporter's Transcript, February 18, 2025, pp. 139–141, CGC-21-594102.

FACT 18: ALBERTO REYNA'S DOCUMENT REQUEST

Alberto Reyna, of Phillips, Spallas & Angstadt LLP, served a request for "all documents, records stored in any format" relating to the collision in February 2024.

Support: Document production requests; Substitution of Attorney records, CGC-21-594102.

FACT 19: CAD NUMBERS PROVIDED TO REYNA

CAD log numbers were provided to Alberto Reyna on September 9, 2024.

Support: Correspondence and discovery responses, CGC-21-594102.

FACT 20: SUBSTITUTION OF ATTORNEY AND PSA TENURE

A Substitution of Attorney was filed on May 4, 2023 (Transaction ID #69953800), reflecting that Phillips, Spallas & Angstadt LLP had held the defense file for approximately 20 months before trial.

Support: Clerk's Transcript, Substitution of Attorney, Transaction ID #69953800, May 4, 2023, CGC-21-594102.

FACT 21: "NEWS TO ME" STATEMENT

At the February 18, 2025 pretrial hearing, defense counsel Priya Navaratnasingham stated on the record that the 911 recording was "news to me," despite the recording having been produced in discovery and used at depositions in 2022.

Support: Reporter's Transcript, February 18, 2025, p. 141, ll. 4–11, CGC-21-594102.

FACT 22: "NOT SURE WHAT RECORDING" STATEMENT

At trial on April 16, 2025, Alberto Reyna stated on the record that he was "not sure what recording" was being referenced, despite the 911 recording having been produced in discovery, used at depositions, and the subject of pretrial motions.

Support: Reporter's Transcript, April 16, 2025, ll. 2990–2994, CGC-21-594102.

FACT 23: JURY QUESTION REGARDING VEHICLE CODE STATUTES

During deliberations, the jury submitted a written question asking about Vehicle Code sections 22107 and 21804(a).

Support: Jury question; Reporter's Transcript, CGC-21-594102.

FACT 24: COURT'S RULING ON VEHICLE CODE EVIDENCE

The Court informed the jury that Vehicle Code sections 22107 and 21804(a) were "not part of the evidence" and that the jury was "not permitted to consider" them.

Support: Reporter's Transcript, court's response to jury question, CGC-21-594102.

FACT 25: IMPORTANCE OF SFPD RECORDS TO DEFENSE

The defense independently subpoenaed the San Francisco Police Department for the same 911 audio, body-worn camera footage, and related data that Plaintiff had obtained and produced in discovery, demonstrating that defense counsel regarded these materials as critical to the case.

Support: Sworn testimony of J. Jessup, Esq., Reporter's Transcript, February 18, 2025, p. 140, ll. 9–15, CGC-21-594102; Fact 9 (production to defense in 2022).

FACT 26: NO PRE-DENIAL CONTACT WITH PLAINTIFF

CSAA did not contact Plaintiff to obtain his account of the collision before issuing the February 25, 2021 denial letter.

Support: Denial letter (no reference to Plaintiff's account); Complaint allegations, CGC-25-631802.

FACT 27: THREE-WEEK INVESTIGATION WINDOW

The period between the collision (February 4, 2021) and the denial letter (February 25, 2021) was 21 calendar days, of which only 15 were business days.

Support: Calendar computation from the two dates; Complaint, CGC-21-594102; CSAA denial letter dated February 25, 2021.

FACT 28: POST-DENIAL DURATION OF LITIGATION

CSAA funded the defense of *Rosario v. Abdelhalim* for approximately four years after representing its investigation was "concluded," from filing on July 27, 2021 through judgment on April 25, 2025.

Support: Complaint filing date, CGC-21-594102; Notice of Entry of Judgment; Fact 6 (CSAA funded the defense); Fact 2 (denial letter date).

FACT 29: NO SFPD CONTACT BEFORE DENIAL

As of February 25, 2021, CSAA had not contacted the San Francisco Police Department to request records relating to the February 4, 2021 collision.

Support: Claim file; absence of SFPD request in pre-denial investigation records.

FACT 30: NO DEM CONTACT BEFORE DENIAL

As of February 25, 2021, CSAA had not contacted the San Francisco Department of Emergency Management to request records relating to the collision.

Support: Claim file; absence of DEM request in pre-denial investigation records.

FACT 31: SINGLE-SOURCE INVESTIGATION

As of February 25, 2021, the only source of information CSAA had regarding the circumstances of the collision was the account provided by its insured, Subhi Abdelhalim.

Support: Claim file; denial letter (no reference to Plaintiff's account or objective evidence).

FACT 32: NO 911 RECORDING BEFORE DENIAL

As of February 25, 2021, CSAA had not obtained the 911 call audio recording generated by law enforcement in response to the collision.

Support: Claim file; Fact 4 (Plaintiff's counsel obtained it May 12, 2021).

FACT 33: IRRECONCILABLE CONTRADICTION—"CONCLUDED" VS. NO 911

CSAA cannot simultaneously maintain that (a) its investigation was "concluded" as of February 25, 2021, and (b) it had not obtained the 911 audio recording containing its insured's statement about the collision.

Support: Logical inference from Facts 2, 3, 7, 32; RFA 50.

FACT 34: IRRECONCILABLE CONTRADICTION—"CONCLUDED" VS. ONGOING EVALUATION

CSAA cannot simultaneously maintain that (a) its investigation was "concluded" as of February 25, 2021, and (b) it continued to evaluate, reassess, monitor, or adjust reserves on the claim after that date.

Support: Claim file; Fact 28 (four years of funded litigation); RFA 51.

FACT 35: CSAA KNEW OF PRODUCTION BEFORE MILS

Prior to January 17, 2025, CSAA was aware that the 911 audio, body-worn camera footage, and CAD records had been served on defense counsel during discovery in CGC-21-594102.

Support: Claims file; litigation management records; periodic reports from defense counsel.

FACT 36: CSAA DID NOT CORRECT MILS AFTER JESSUP TESTIMONY

CSAA did not disavow or correct the representations in Motions in Limine Nos. 6 and 17 after the February 18, 2025 hearing at which J. Jessup testified that the evidence had been served on defense counsel during discovery.

Support: Record of proceedings; MIL Nos. 6 and 17 (no withdrawal or correction), CGC-21-594102.

BASIS FOR JUDICIAL SUMMARY

These thirty-six facts are documentary. Defendant cannot deny the collision date, the letter date, the authentication testimony, the verdict margin, the defense subpoena to SFPD, the MIL No. 17 claims, the "news to me" and "not sure what recording" statements, or the jury question and court ruling on Vehicle Code statutes. The 21-day gap between collision and denial, the subsequent obtainability of the 911 recording by May 12, 2021, the production of materials in discovery, Reyna's document request and receipt of CAD numbers, and PSA's 20-month tenure on the file are arithmetically and documentarily undeniable. Facts 29–32 establish the minimal scope of CSAA's pre-denial investigation (no SFPD or DEM contact, single-source reliance, no 911). Facts 33–34 establish irreconcilable contradictions that prove falsity. Facts 35–36 establish CSAA's knowledge and ratification of the false MIL representations. Plaintiff requests the Court to decide that these facts are established for all purposes in this action.

Together, they establish that CSAA's representation of investigative finality was false when made: the investigation had not been "concluded" in any meaningful sense, because CSAA had not obtained or reviewed the foundational objective evidence of the collision. The 911 recording containing Abdelhalim's own admission ("I barely hit him with anything") was available through routine public records requests, was obtained by Plaintiff's counsel within three months, was produced to the defense in 2022, and was sufficiently important that defense counsel independently subpoenaed SFPD for the same records. Defense counsel's pretrial assertions that the recording was "news to me" and "not sure what recording" conflict with the record of production and depositions. MIL No. 17's claims of non-production and "eleventh hour" introduction are contradicted by the documentary timeline. CSAA's categorical denial 21 days after the collision, without obtaining this evidence, followed by four years of CSAA-funded litigation, demonstrates that the "concluded investigation" representation was either knowingly false or made with reckless disregard for its truth.

Dated: March 3, 2026

FRANCISCUS DYLAN ROSARIO
Plaintiff, In Pro Per

7624 Melody
Rohnert Park, CA 94928
650.488.7510
E: soltrinox@gmail.com

EXHIBIT A

CSAA Denial Letter (February 25, 2021, Claim No. 1004-09-1054)

Case No.: CGC-25-631802

Superior Court of California, County of San Francisco

P.O. Box 24523
Oakland, CA 94623-1523
Phone 800.922.8228
Fax 877.548.1610

000101 7117808 000 01 001

FRANCISCUS ROSARIO
835 TERRY A FRANCOIS BLVD
SAN FRANCISCO, CA 94158-2209

February 25, 2021

Re:	Insured:	Subhi Abdelhalim
	Claim No.:	1004-09-1054
	Date of Loss:	February 04, 2021

Dear Franciscus Rosario:

We have concluded our investigation of your claim.

Based on our investigation, and after carefully reviewing the facts and circumstances of your claim, we have concluded that our insured is not liable for your damages resulting from this loss. Therefore we must decline your claim. In addition, we dispute your right to recover the amount of damages you have claimed.

Our decision is based on the facts currently available. If you have any additional information which you believe is relevant to your claim, please submit that information to us for our consideration.

If you believe this claim has been wrongfully denied or rejected in whole or in part, you may have the matter reviewed by the Claims Services Bureau of the California Department of Insurance, 300 South Spring Street, Los Angeles, California 90013; Telephone: 800.927.4357 or 213.897.8921.

According to California law, you have two (2) years from the date of an incident to file a lawsuit for damages as a result of personal injury. If you sustained personal injuries as a result of the incident, you must settle your claim or file a lawsuit against those responsible for your personal injuries within two years from the date of the incident. Should you fail to do so, we will be entitled to deny your personal injury claim on that basis.

According to California law, you have three (3) years from the date of an incident to file a lawsuit for damages as a result of damage to your property. If you sustained damage to your property as a result of the incident, you must settle your claim or file a lawsuit against those responsible for the damage to your property within three years from the date of the incident. Should you fail to do so, we will be entitled to deny your property damage claim on that basis.

Should you have any questions, please do not hesitate to contact me.

Sincerely,

Sarah Rash

Sarah Rash
Claims Representative
Phone: 856-209-7086

EXHIBIT E

Notice of Entry of Judgment (April 29, 2025) (CGC-21-594102)

Case No.: CGC-25-631802

Superior Court of California, County of San Francisco

D. Defense Relied Solely on Inadmissible Hearsay

Officer Fernandez testified that Plaintiff was "riding the wrong way" in a bike lane — based on third-party hearsay. He admitted under oath he had no personal knowledge. The Court refused to issue a limiting instruction under CACI No. 219 or Evidence Code § 355, allowing the jury to misuse this statement to absolve Defendant.

E. No Reasonable Jury Could Find No Liability

Where liability is clear and uncontradicted, and defense relies exclusively on hearsay and speculative testimony, JNOV is required. (Estate of Wallace (1971) 17 Cal.App.3d 771, 778–779.)

IV. CONCLUSION

The jury verdict in this case lacks legal support and contradicts binding evidence. This Court must enter judgment in favor of Plaintiff.

RESERVATION OF RIGHTS

Plaintiff expressly reserves all rights to pursue appellate review, writ relief, sanctions, and judicial or disciplinary complaints against any party or judicial officer whose conduct has resulted in structural error, due process violations, or ethical breaches in these proceedings. Nothing herein shall be construed as a waiver, acquiescence, or election of remedies.

Respectfully Submitted,

EXHIBIT F

Feb 1, 2024 Deposition Subpoena (Reyna/PSA to SFPD; 911/BWC/Attachment 3; pp. 5-

Case No.: CGC-25-631802

Superior Court of California, County of San Francisco

ATTORNEY OR PARTY WITHOUT ATTORNEY *(Name, State Bar number, and address)*:
ALBERTO REYNA (BAR#: 347323)
PHILLIPS, SPALLAS & ANGSTADT LLP
560 MISSION STREET, SUITE 1010
SAN FRANCISCO, CA 94105
TELEPHONE NO.: 415-278-9400 FAX NO.: 415-278-9411
E-MAIL ADDRESS: areyna@psalaw.net
ATTORNEY FOR *(Name)*: SUBHI ABDELHALIM INDIVIDUALLY, AND DBA SONOMA LIQUOR

FOR COURT USE ONLY

SUPERIOR COURT OF CALIFORNIA, COUNTY OF SAN FRANCISCO
STREET ADDRESS: 400 MCALLISTER ST
MAILING ADDRESS:
CITY AND ZIP CODE: SAN FRANCISCO, 94102
BRANCH NAME: SAN FRANCISCO SUPERIOR

PLAINTIFF/PETITIONER: FRANCISCUS DYLAN ROSARIO
DEFENDANT/RESPONDENT: SUBHI ABDELHALIM INDIVIDUALLY, AND DBA SONOMA LIQUOR

DEPOSITION SUBPOENA FOR PRODUCTION OF BUSINESS RECORDS

CASE NUMBER: CGC-21-594102

THE PEOPLE OF THE STATE OF CALIFORNIA, TO *(name, address, and telephone number of deponent, if known)*:
CUSTODIAN OF RECORDS: SAN FRANCISCO POLICE DEPARTMENT (LEGAL DIVISION)
850 BRYANT STREET, SUITE 511, SAN FRANCISCO, CA 94103

1. **YOU ARE ORDERED TO PRODUCE THE BUSINESS RECORDS described in item 3, as follows:**

To *(name of deposition officer)*: **COMPEX LEGAL SERVICES**
On *(date)*: **02/26/2024** At *(time)*: 09:00 A.M.
Location *(address)*: 325 MAPLE AVENUE, TORRANCE, CALIFORNIA, 90503

Do not release the requested records to the deposition officer prior to the date and time stated above.

a. ☐ by delivering a true, legible, and durable **copy** of the business records described in item 3, enclosed in a sealed inner wrapper with the title and number of the action, name of witness, and date of subpoena clearly written on it. The inner wrapper shall then be enclosed in an outer envelope or wrapper, sealed and mailed to the deposition officer at the address in item 1.
b. ☐ by delivered a true, legible, and durable **copy** of the business records described in item 3 to the deposition officer at the witness's address, on receipt of payment in cash or by check of the reasonable costs of preparing the copy, as determined
under Evidence Code section 1563(b).
c. ☒ by making the **original** business records described in item 3 available for inspection at your business address by the attorney's representative and permitting **copying** at your business address under reasonable conditions during normal business hours.

2. *The records are to be produced by the date and time shown in item 1 (but not sooner than 20 days after the issuance of the deposition subpoena, or 15 days after service, whichever date is later). Reasonable costs of locating records, making them available or copying them, and postage, if any, are recoverable as set forth in Evidence Code section 1563(b). The records shall be accompanied by an affidavit of the custodian or other qualified witness pursuant to Evidence Code section 1561.*
3. The records to be produced are described as follows *(if electronically stored information is demanded, the form or Forms in which each type of information is to be produced may be specified)*:
RECORD SUBJECT: FRANCISCUS DYLAN ROSARIO
DOB: 06/06/1976 SSN: XXX-XX-0431

☒ Continued on Attachment 3

4. **IF YOU HAVE BEEN SERVED WITH THIS SUBPOENA AS A CUSTODIAN OF CONSUMER OR EMPLOYEE RECORDS UNDER CODE OF CIVIL PROCEDURE SECTION 1985.3 OR 1985.6 AND A MOTION TO QUASH OR AN OBJECTION HAS BEEN SERVED ON YOU, A COURT ORDER OR AGREEMENT OF THE PARTIES, WITNESSES, *AND* CONSUMER OR EMPLOYEE AFFECTED MUST BE OBTAINED BEFORE YOU ARE REQUIRED TO PRODUCE CONSUMER OR EMPLOYEE RECORDS.**

DISOBEDIENCE OF THIS SUBPOENA MAY BE PUNISHED AS CONTEMPT BY THIS COURT. YOU WILL ALSO BE LIABLE FOR THE SUM OF FIVE HUNDRED DOLLARS AND ALL DAMAGES RESULTING FROM YOUR FAILURE TO OBEY.

Date issued: 02/01/2024

ALBERTO REYNA
(TYPE OR PRINT NAME)

/S/ ALBERTO REYNA
(SIGNATURE OF PERSON ISSUING SUBPOENA)

ATTORNEY
(TITLE)

PLAINTIFF/PETITIONER:	FRANCISCUS DYLAN ROSARIO	CASE NUMBER:
DEFENDANT/RESPONDENT:	SUBHI ABDELHALIM INDIVIDUALLY, AND DBA SONOMA LIQUOR	CGC-21-594102

PROOF OF SERVICE OF DEPOSITION SUBPOENA FOR PRODUCTION OF BUSINESS RECORDS

1. I served this *Deposition Subpoena for Production of Business Records* by to the person served as follows:

   a. Person served (name):

   b. Address where served:
   850 Bryant Street, Suite 511, San Francisco, CA 94103

   c. Date of delivery:

   d. Time of delivery:

   e. (1) ☒ Witness fees were paid.
   Amount: _____ $ 15.00

   (2) ☐ Copying fees were paid.
   Amount: _____ $ _____

   f. Fee for service: $ _____

2. I received this subpoena for service on *(date)*:

3. Person serving:
   a. ☐ Not a registered California process server.
   b. ☐ California sheriff or marshal.
   c. ☐ Registered California process server.
   d. ☐ Employee or independent contractor of a registered California process server.
   e. ☐ Exempt from registration under Business and Professions Code section 22350(b).
   f. ☒ Registered professional photocopier.
   g. ☐ Exempt from registration under Business and Professions Code section 22451.
   h. Name, address, telephone number, and, if applicable, county of registration and number:
   Compex Legal Services, Inc.
   325 Maple Avenue
   Torrance, CA 90503

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Date:

▶ _____
(SIGNATURE)

(For California sheriff or marshal use only)
I certify that the foregoing is true and correct.

Date:

▶ _____
(SIGNATURE)

ATTACHMENT 3

NAME: Franciscus Dylan Rosario
DOB: **6/6/1976**
SSN: xxx-xx-0431

Scope: 01/01/2013 to Present

SAN FRANCISCO POLICE DEPARTMENT – RECORDS DIVISION,

Report No. 210079556

DOI: 02/04/2021

ANY AND ALL DOCUMENTS AND RECORDS STORED IN ANY FORMAT RELATED TO REPORT #210079556, THAT OCCURRED ON 02/04/2021 AT OR ABOUT 3:00 PM (0300) ON 5TH ST. AND TEHAMA ST. SAN FRANCISCO, CALIFORNIA INVOLVING DRIVER SUBHI ABDELHALIM AND OTHERS INCLUDING FRANCISCUS DYLAN ROSARIO, INCLUDING BUT NOT LIMITED TO THE ENTIRE HARD FILE, BOTH ELECTRONIC AND WRITTEN COMMUNICATIONS, NOTES, MEMORANDUMS, STATEMENTS, WITNESS INTERVIEWS, PHOTOGRAPHS, VIDEOS, RECORDINGS, 9-1-1 CALL, CALCULATIONS AND RAW DATA.

ANY AND ALL VIDEO RECORDINGS FROM ANY CALIFORNIA HIGHWAY PATROL OR SAN FRANCISCO POLICE OFFICER'S BODY-WORN CAMERA (BWC) RELATED TO THE EVENTS, CIRCUMSTANCES AND INVESTIGATION REGARDING INCIDENT AT OR ABOUT 02/04/2021 AT OR ABOUT 3:00 PM (0300) ON 5TH ST. AND TEHAMA ST. SAN FRANCISCO, CALIFORNIA AS IDENTIFIED IN REPORT #210079556

EXHIBIT G

Answer to Complaint (Chambers/CSK, Sept 14, 2021; doc. 07798014; general denial,

Case No.: CGC-25-631802

Superior Court of California, County of San Francisco

Michael R. Chambers
State Bar No. 132394
CARBONE, SMITH & KOYAMA
ATTORNEYS AT LAW
555 12TH STREET, SUITE 1250
OAKLAND, CA 94607-4095
(510) 267-7276
EMAIL: MICHAEL.CHAMBERS@CSAA.COM
ATTORNEYS FOR DEFENDANT
SUBHI ABDELHALIM

ELECTRONICALLY
FILED
Superior Court of California,
County of San Francisco
09/14/2021
Clerk of the Court
BY: EDWARD SANTOS
Deputy Clerk

SUPERIOR COURT OF CALIFORNIA, COUNTY OF SAN FRANCISCO

UNLIMITED CIVIL JURISDICTION

Franciscus Dylan Rosario, Plaintiff, v. Subhi Abdelhalim, individually, and dba Sonoma Liquor, Defendants.	Case No. CGC-21-594102 **ANSWER TO COMPLAINT**

COMES NOW defendant Subhi Abdelhalim and answers the complaint on file herein as follows:

1. Under the provisions of Section 431.30 of the Code of Civil Procedure of the State of California, this answering defendant generally denies each and every allegation of the complaint, and the whole thereof, and further denies that plaintiff has been or is now or will be damaged to the extent alleged or to any other extent.

AS AND FOR FURTHER, SEPARATE AND DISTINCT AFFIRMATIVE DEFENSES, ANSWERING DEFENDANT AVERS:

FIRST AFFIRMATIVE DEFENSE

2. The incident or incidents complained of by plaintiff herein were caused, in whole or in part, by the negligence of the plaintiff. Any recovery by plaintiff in this case must be reduced by that percentage of the plaintiff's negligence which contributed to the incident or

incidents.

SECOND AFFIRMATIVE DEFENSE

3. Plaintiff failed to use reasonable care to mitigate, in whole or in part, the damages alleged in the complaint.

THIRD AFFIRMATIVE DEFENSE

4. Damages complained of by plaintiff herein were caused, in whole or in part, by acts and omissions of persons other than this answering defendant, which other persons may or may not be named as defendants in this action. This answering defendant should only be required to pay that portion of the plaintiff's damages attributable to this answering defendant pursuant to Civil Code sections 1431.2 and/or 1432.

FOURTH AFFIRMATIVE DEFENSE

5. The complaint and/or causes of action therein are barred by the applicable statute of limitations, specifically including but not limited to California Code of Civil Procedure sections 335.1; 337; 338(a),(b),(c),(d) and (j); and 339.

FIFTH AFFIRMATIVE DEFENSE

6. Defendant is informed and believes, and thereon alleges, that at the time of the incident which is the subject of this action plaintiff was not insured as required by the state's financial responsibility laws, and/or that plaintiff was driving in violation of Vehicle Code section 23152 and/or 23153 for which violation(s) plaintiff was convicted. Therefore, plaintiff's recovery, if any, must be limited to economic damages pursuant to Civil Code section 3333.4.

SIXTH AFFIRMATIVE DEFENSE

7. The complaint and/or causes of action therein fail to state facts sufficient to constitute a cause of action against this answering defendant.

WHEREFORE, defendant prays:

1. That plaintiff takes nothing;
2. For costs of suit herein; and
3. For such other and further relief as the Court deems just and proper.

DATED: September 13, 2021 CARBONE, SMITH & KOYAMA

Michael R. Chambers
Attorneys for Defendant Subhi Abdelhalim

Rosario v. Abdelhalim
San Francisco County Superior Court
Case No. CGC-21-594102

PROOF OF SERVICE

I, Meredith Miller, am a citizen of the United States and employed by the office of Carbone, Smith & Koyama located at 555 12th Street, Suite 1250, Oakland, CA 94607-4095. I am over the age of 18 years and am not a party to this action.

On the below date, I served the accompanying ANSWER TO COMPLAINT on the parties in said action addressed as follows:

Kimberly E. Levy, Esq.
Jeremy M. Jessup, Esq.
Dolan Law Firm, PC
1438 Market St
San Francisco, CA 94102-6004
Attorney for Plaintiff
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☒ **BY ELECTRONIC TRANSMISSION:** Pursuant to California Code of Civil Procedure section 1010.6(e)(1), effective September 18, 2020, or an agreement of the parties to accept service by electronic transmission, I caused the document(s) to be electronically sent to the persons at the email address(es) indicated on the above list. I did not receive, within a reasonable time after the transmission, any electronic message or other indication that the transmission was unsuccessful.

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct. I declare that I am employed in the offices of a member of the bar of this court at whose direction the service was made.

Dated: September 14, 2021

Meredith Miller